

IN RE: PANDIT

CASE NUMBER: 26CV-0210214

Tentative Ruling on Petition for Change of Name: Petitioner Arianna Carin Pandit seeks to change her name to Arianna Carin Lemont. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

IN RE: REMINGTON

CASE NUMBER: 26CV-0210245

Tentative Ruling on Petition for Change of Name: Petitioner Brittany Jean Remington seeks to change her name to Brittany Jean Vaughn. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

ROCKY TOP RENTALS, LLC VS. ROBINSON, ET AL.

CASE NUMBER: 24CVG-00573

Tentative Ruling on Motion to Deem Request for Admissions Admitted: Plaintiff Rocky Top Rentals, LLC seeks an order deeming the truth of the matters specified in Plaintiff's Request for Admissions, Set One to be admitted by Defendant Rick Carl Lewis. Despite being timely served, Defendant not file an Opposition.

When a party fails to respond to Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Plaintiff's moving papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame. Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390.

Monetary sanctions are mandatory per CCP § 2033.280(c). Plaintiff has presented evidence that Plaintiff has incurred four hours of attorney time thus far and expects to spend one more hour attending the hearing. Counsel bills at \$325 per hour which the Court finds to be reasonable. The filing fee for the motion was \$60. Assuming that Plaintiff attends the hearing, sanctions will be ordered in the amount of \$1,685. If Plaintiff does not attend the hearing, sanctions will be ordered in the amount of \$1,360.

The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff's Request for Admissions, Set One. Objections are waived. Monetary sanctions are awarded to Plaintiff in either the amount of \$1,685 or \$1,360. Plaintiff is to provide a proposed Order consistent with the Court's ruling that includes the text of all Requests for Admission being deemed admitted. The Court confirms the trial date of September 22, 2026.

SATHER VS. SATHER

CASE NUMBER: 26CV-0210352

Tentative Ruling on Demurrer and Motion to Strike: Defendant Barry Sather filed a Demurrer and Motion to Strike on May 27, 2026. The hearing date in the caption of the notice is June 29, 2026. However, the body of the Notice provides for a hearing date of June 22, 2026. Additionally, the Proof of Service attached to the Notice indicates only electronic service on Plaintiff Matthew Sather. Plaintiff is a self-represented litigant. Electronic service is only permitted for self-represented litigants if express consent has been given. CCP § 1010.6(c). Judicial Council form EFS-005-CV has not been filed and there is nothing before the Court that would permit the Court to determine that Plaintiff has agreed to electronic service. Compliance with CCP § 1010.6 and CRC 2.251

is required. Plaintiff did not file an Opposition to the Demurrer and Motion to Strike. Without proper notice to Plaintiff, the Demurrer and Motion to Strike are **OVERRULED/DENIED** without prejudice. Defendant provided a proposed Order that will be modified to reflect the Court's ruling.

IN RE: WRIGHT

CASE NUMBER: 26CV-0210187

Ruling on Petition for Change of Name: Petitioner Cynthia Marie Wright seeks to change her name to Katheryn Elizabeth Nickell. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

WYNHOFF VS. CITY OF REDDING

CASE NUMBER: 24CV-0204924

Tentative Ruling on Pitchess Motion: Defendant City of Redding filed a Motion for Disclosure of Peace Officer Personnel Records (Pitchess) seeking records from the County of Siskiyou regarding Plaintiff September Wynhoff. The Proof of Service attached to the motion indicates electronic service on four individuals with County of Siskiyou email addresses. The County of Siskiyou has appeared in this matter for a previous Pitchess motion and has been consistently represented by James R. Ross from Renne Public Law Group. Renne Public Law Group first appeared in a stipulation filed July 16, 2025 regarding the previous Pitchess motion and Renne Public Law Group has represented the County of Siskiyou throughout the entire previous Pitchess motion, including filing the Opposition, attending the hearing, attending the in camera review, and providing responsive records to the court. Nothing has been filed to indicate that Renne Public Law Group is no longer representing the County of Siskiyou. Siskiyou County Counsel has never appeared in this action on behalf of the County of Siskiyou.

Defendant City of Redding is again seeking records from the County of Siskiyou, but did not serve Renne Public Law Group. No Opposition to the motion has been filed. Where a party has an attorney in the action or proceeding, the service of papers must be upon the attorney instead of the party. CCP § 1015. Without proper service on the County of Siskiyou and there being no Opposition on file, the Court **DENIES** the motion without prejudice. Should Defendant City of Redding prefer a continuance of the hearing date in order to properly serve the County of Siskiyou through counsel of record, counsel may appear at the hearing to request a new hearing date. Otherwise, the Court will modify the proposed Order submitted by the City of Redding.

YATES VS. GENERAL MOTORS, LLC

CASE NUMBER: 24CV-0206692

Tentative Ruling on Motion for Attorney Fees and Costs: Plaintiff Mitchell Yates filed this Song-Beverly Consumer Warranty Act case on December 23, 2024, alleging that his 2021 GMC Sierra was defective and that GM failed to conform the vehicle to its written warranty within a reasonable number of repair attempts. Pursuant to a CCP section 998 Offer to Compromise executed November 13, 2025, Defendant agreed to designate Plaintiff as the prevailing party and pay Plaintiff's attorney fees and costs upon motion. Plaintiff requests that the Court award \$38,286.73 in attorney fees and costs, plus a 0.3 multiplier, for a total award of \$47,996.98. GM opposes hourly rates, total hours, and costs. GM requests an award not exceeding \$8,437.05 in fees plus \$435.00 in costs.

Merits: The Song-Beverly Act contains a cost-shifting provision that specifically allows prevailing buyers to recover their costs, including attorney's fees. Civ. C. § 1794(d). The attorney's fee award is limited to the amount the court determines was reasonably incurred by the buyer in commencing and prosecuting the action, based on actual time expended. The prevailing buyer has the burden of proving the fees were both reasonably necessary to conduct the litigation and reasonable in amount. Civil Code § 1794(d); *Robertson v. Fleetwood Travel Trailers of California, Inc.*, (2006) 144 Cal. App. 4th 785. The lodestar method applies to determining attorney's fees under the Song-Beverly Act. *Id.* at 817. When determining a reasonable attorney's fee award, using the lodestar method, the judge begins by deciding the reasonable hours the prevailing party's attorney spent on the case and